

25STLC08259 25STLC08259

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-07-28

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Case Number: 25STLC08259 Hearing Date: July 28, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Westlake

Services, LLC's Motion to Strike Answer of Defendant Maflo Group, LLC dba Top Cars, is denied.

On its own motion, the Court sets

an Order to Show Cause Re: Status of the Legal Representation of Defendant Maflo Group, LLC dba Top Cars for 09/01/2026

at 9:30 am in Department 26 in the Spring Street Courthouse.

ANALYSIS:

Plaintiff Westlake Services, LLC ("Plaintiff") filed the

instant action against Defendant Maflo

Group, LLC dba Top Cars ("Defendant Maflo Group") and Rolando Manzur Aka

Rolando Manzur Nieto Aka Rolando Manzur Sr. ("Defendant Manzur") on October 31,

2025. On December 19, 2025, Defendants filed a General Denial.

Plaintiff filed the instant Motion to Strike Answer on April

23, 2026. The Motion was served on Defendants by first-class mail and

electronic mail the same day. No opposition has been filed to date. On July 22,

2026, Defendants filed an ex parte application for an extension of time, which

is also set for hearing on July 28, 2026.

Discussion

The Motion to Strike Answer is brought pursuant to Code of

Civil Procedure section 436 on the grounds that Defendant Maflo Group, despite

being a corporation, was not represented by an attorney at the time the Answer was filed. Instead, the Answer is signed by "Rolando Manzur," who does not indicate that they are a licensed attorney. (Answer, filed 12/19/25, p. 1.)

However, motions to strike in the Limited Civil Court may only challenge pleadings on the basis that "the damages or relief sought are not supported by the allegations of the complaint." (Code of Civ. Proc., § 92, subd. (d).) The instant Motion to Strike Answer does not pertain to whether the damages or relief sought are supported by the allegations, and therefore, cannot be raised in this Court.

That being said, it is black letter law that a corporation cannot represent itself in court. (Clean Air Transport Systems v. San Mateo County Transit Dist. (1988) 198 Cal.App.3d 576, 578 (citing Merco Constr. Engineers, Inc. v. Municipal Court (1978) 21 Cal.3d 724, 729-730).) This rule applies to all entities regarded as separate from their owners, including partnerships and unincorporated associations. (See Clean Air Transport Systems, supra, 19 Cal.App.3d at 578.) Defendant Maflo Group's Answer does not indicate it was filed by a licensed attorney. Therefore, the Court finds Defendant Maflo Group filed the General Denial without proper legal representation and that it cannot appear without an attorney going forward.

Within five days of this ruling,
Plaintiff is to file proof of notice of this ruling on Defendant at the mailing addresses and email address used for service of the Motion. (Motion, p. 8.)

Conclusion

Plaintiff Westlake

Services, LLC's Motion to Strike Answer of Defendant Maflo Group, LLC dba Top Cars, is denied.

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